

allegations from the original complaint suggest, however, that Plaintiff may be able to allege facts sufficient to state a medical battery claim based on conditional consent to treat her but not to give her specific medications to which she was allergic, that one or more of the defendants were informed of her allergies and instructed by her family and/or friend not to give specific medications, but that she was nevertheless intentionally administered such medications in violation of their conditional consent. Plaintiff filed her initial complaint within two years after her hospitalization, treatment, and discharge, which would make a medical battery claim timely under Code of Civil Procedure section 335.1. Where there is a reasonable possibility that a complaint may be amended to cure the deficiencies, then leave to amend must be granted. (*Quelimane Co.*, *supra*, 19 Cal.4th at 39.)

The general demurrer to the third cause of action for medical battery is therefore **SUSTAINED, WITH LEAVE TO AMEND.**

5. 9:00 AM CASE NUMBER: C25-02273
CASE NAME: LINDA WILLIAMS VS. SAN RAMON REGIONAL MEDICAL CENTER
*HEARING ON MOTION IN RE: STRIKE 2ND AMENDED COMPLAINT
FILED BY: GROVE, JUDITH, RN
TENTATIVE RULING:

Before the Court is a motion by defendants San Ramon Regional Medical Center, Tenet Healthcare Corporation, Judith Grove R.N., and Rene Ochoa, R.N. to strike portions of the second amended complaint. Defendants Narendra K. Malani, M.D. and Joseph Toscano, M.D. have joined in the motion. The motion and joinders are **DENIED AS MOOT**, based on the Court's concurrent ruling on the demurrers to the second amended complaint by the moving and joining defendants.

6. 9:00 AM CASE NUMBER: C25-02273
CASE NAME: LINDA WILLIAMS VS. SAN RAMON REGIONAL MEDICAL CENTER
*HEARING ON MOTION IN RE: STRIKE PLTFS 2ND AMENDED COMPLAINT
FILED BY: MALANI, DR. NARENDRA K
TENTATIVE RULING:

Before the Court is a motion by defendant Narendra K. Malani, M.D. to strike portions of the second amended complaint. The motion is **DENIED AS MOOT**, based on the Court's concurrent ruling on the demurrer to the second amended complaint by the moving defendant.

7. 9:00 AM CASE NUMBER: C25-02273
CASE NAME: LINDA WILLIAMS VS. SAN RAMON REGIONAL MEDICAL CENTER
HEARING IN RE: JOINDER IN CO-DEF SAN RAMON REGIONAL MEDICAL CENTER, ET AL.'S MOTION TO STRIKE PLAINTIFF'S SECOND AMENDED COMPLAINT
FILED BY: TOSCANO, DR. JOSEPH
TENTATIVE RULING:

See Line 5 above.